THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions o fthe Marine Environment Protection Committee conferred upon it by international conventions for the prevention and control of marine pollution from ships, RECALLING ALSO article 16 of the International Convention for the Prevention of Pollution from Ship s, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the - from Ship s, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the Organization the function of considering and adopting amendments thereto, HAVING CONSIDERED, at it sseventy -sixth session, proposed amendments to MARPOL Annex Iconcerning the prohibition on the use and carriage for use as fuel of heavy fuel oil by ships in Arctic waters, which were circulated in accordance with article 16(2)(a) of MARPOL, 1 ADOPTS, in accordance with article 16(2)(d) of MARPOL, amendments to MARPOL Annex I, the text of which is set out in the annex to the present resolution; 2 DETERMINES, in accordance with article 16(2)(f)(iii) of MARPOL, that the amendments shall be deemed to have been accepted on 1 May 2022 unless prior to that date not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world'smerchant fleet have communicated to the Organization their objection to the amendments; 3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL, - constitute not less than 50% of the gross tonnage of the world'smerchant fleet have communicated to the Organization their objection to the amendments; 3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL, the said amendments shall enter into force on 1 November 2022 upon their acceptance in accordance with paragraph 2 above; 4 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL, to transmit certified copies of the present resolution and the text of the amendments contained in the annex to all Parties to MARPOL; 5 REQUESTS ALSO the Secretary-General to transmit copies of the present resolution and its annex to Members of the Organization which are not Parties to MARPOL. RESOLUTION MEPC.329(76) (adopted on 17 June 2021) AMENDMENTS TO THE ANNEX OF THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 REL